

M/s Nipro Glass India Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 12 September 2016 · Writ - C No. 35014 of 2013 · **Writ dismissed as infructuous; para 4.20 additional-security challenge not decided.**

HEADNOTE

Writ challenging additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. On 2 July 2013 a Division Bench tagged the petition with W.P. No. 30582 of 2009 and similar pending matters and, following that connected interim, restrained the licensee from demanding additional security. On 12 September 2016 the petition was dismissed as infructuous on the petitioner's statement. Para 4.20 was not decided.

FACTUAL SUMMARY

M/s Nipro Glass India Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. On 2 July 2013 the High Court tagged the writ with Vehina Steels (W.P. No. 30582 of 2009) and similar pending petitions, allowed time for a counter affidavit, and, following that connected interim, restrained the respondents from demanding additional security until further orders. On 12 September 2016 the petitioner's counsel stated the writ had become infructuous, and the Court dismissed it as such.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

A writ challenging additional security under para 4.20 was tagged with similar pending petitions and the licensee was restrained, following a connected interim, from demanding additional security until further orders. The petition was later dismissed as infructuous on the petitioner's statement, without deciding para 4.20. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF ADDITIONAL SECURITY DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Petition tagged with similar pending writs and later dismissed as infructuous. ¶ 1-2